

GORSUCH, J., concurring in judgment

IV. Policy Arguments

Lacking support elsewhere, JUSTICE KAGAN is forced to resort to policy arguments to defend *Auer*. But even the most sensible policy argument would not empower us to ignore the plain language of the APA or the demands of the Constitution. And as we’ve seen, those documents reflect a very different “policy” judgment by the people and their representatives. Besides, the policy arguments offered today are not just unpersuasive, they are troubling.

Take the first and boldest offering. JUSTICE KAGAN suggests that determining the meaning of a regulation is largely a matter of figuring out what the “person who wrote it . . . intended.” *Ante*, at 570. In this way, we’re told, a legally binding regulation isn’t all that different from “a memo or an e-mail”—if you “[w]ant to know what [it] means,” you’d better “[a]sk its author.” *Ibid*. But the federal government’s substantive rules are not like memos or e-mails; they are binding edicts that carry the force of law for all citizens. And if the rule of law means anything, it means that we are governed by the public meaning of the words found in statutes and regulations, not by their authors’ private intentions. This is a vital part of what it means to have “a government of laws, and not of men.”⁹⁵ When judges interpret a regulation, what we are trying to get at, as Justice Holmes explained long ago, is not the “particular intent” of those who wrote it, but “what [its] words would mean [to] a normal speaker of English . . . in the circumstances in which they were used.”⁹⁶ If the best reading of the regulation turns out to be something other than what

⁹⁵ *Marbury*, 1 Cranch, at 163.

⁹⁶ Holmes, *The Theory of Legal Interpretation*, 12 Harv. L. Rev. 417, 417–418 (1899); see *INS v. Cardoza-Fonseca*, 480 U. S. 421, 452–453 (1987) (Scalia, J., concurring in judgment) (“Judges interpret laws rather than reconstruct legislators’ intentions”); H. Hart & A. Sacks, *The Legal Process* 1375 (1994) (“Unenacted intentions or wishes cannot be given effect as law”).

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the agency claims to have intended, the agency is free to rewrite the regulation; but its secret intentions are not the law.

Nor does JUSTICE KAGAN’s account of the interpretive process even wind up supporting *Auer*. If a court’s goal in interpreting a regulation really were to determine what its author “intended,” *Auer* would be an almost complete mismatch with the goal. Agency personnel change over time, and an agency’s policy priorities may shift dramatically from one presidential administration to another. Yet *Auer* tells courts that they must defer to the agency’s *current* view of what the regulation ought to mean, which may or may not correspond to the views of those who actually wrote it. If interpreting a regulation really were just like reading an e-mail, *Auer* would be like seeking guidance about the e-mail’s meaning, years or decades later, from the latest user of the computer from which the e-mail was sent. We’ve repeatedly rejected that approach in the context of statutory interpretation. While Members of this Court sometimes disagree about the usefulness of *pre-enactment* legislative history, we all agree that legislators’ statements about the meaning of an already-enacted statute are not “‘a legitimate tool of statutory interpretation,’” much less a controlling one.⁹⁷ So why on earth would we give “controlling weight” to an agency’s statements about the meaning of an already-promulgated regulation?

Proceeding farther down this doubtful path, JUSTICE KAGAN asserts that resolving ambiguities in a regulation “sounds more in policy than in law” and is thus a task more suited to executive officials than judges. *Ante*, at 571. But this claim, too, contradicts a basic premise of our legal order: that we are governed not by the shifting whims of politicians and bureaucrats, but by written laws whose meaning is fixed and ascertainable—if not by all members of the public, then

⁹⁷ *United States v. Woods*, 571 U. S. 31, 48 (2013).

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at least by lawyers who can advise them and judges who must apply the law to individual cases guided by the neutral principles found in our traditional tools of interpretation. The text of the regulation is treated *as* the law, and the agency’s policy judgment has the force of law *only* insofar as it is embodied in the regulatory text. If “new issues demanding new policy calls” arise that aren’t addressed in existing regulations, *ante*, at 572, the solution is for the agency to promulgate new regulations using the notice-and-comment procedures set forth in the APA. But an agency has no warrant to compel judges to change the law to conform with the agency’s current policy preferences.

To be sure, during the period of *Auer*’s ascendancy some suggested that the meaning of written law is always “radically indeterminate” and that judges expounding it are, “for the most part, guided by policy—not text.”⁹⁸ And in an environment like that it was perhaps thought a small step to conclude that, if legal disputes are going to be resolved on political grounds, then they ought to be resolved by real politicians in the executive branch rather than ersatz politicians on the bench. But the proposed cure proved worse than the disease. Arguments like these surrendered the judgment embodied in our Constitution and the APA that courts owe the people they serve their independent legal judgment about the law’s meaning. Besides, we’ve long since come to realize that the real cure doesn’t lie in turning judges into rubber stamps for politicians, but in redirecting the judge’s interpretive task back to its roots, away from open-ended policy appeals and speculation about legislative intentions and toward the traditional tools of interpretation judges have employed for centuries to elucidate the law’s original

⁹⁸ O’Scannlain, “We Are All Textualists Now”: The Legacy of Justice Antonin Scalia, 91 St. John’s L. Rev. 303, 304–305 (2017) (contesting the radical indeterminacy of legal texts).

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public meaning. Today it is even said that we judges are, to one degree or another, “all textualists now.”⁹⁹

Pursuing a more modest tack, JUSTICE KAGAN next suggests that *Auer* is justified by the respect due agencies’ “technical” expertise. *Ante*, at 571. But no one doubts that courts should pay close attention to an expert agency’s views on technical questions in its field. Just as a court “would want to know what John Henry Wigmore said about an issue of evidence law [or] what Arthur Corbin thought about a matter of contract law,” so too should courts carefully consider what the Food and Drug Administration thinks about how its prescription drug safety regulations operate.¹⁰⁰ The fact remains, however, that even agency experts “can be wrong; even Homer nodded.”¹⁰¹ *Skidmore* and the traditional approach it embodied recognized both of these facts of life long ago, explaining that, while courts should of course afford respectful consideration to the expert agency’s views, they must remain open to competing expert and other evidence supplied in an adversarial setting. Respect for an agency’s technical expertise demands no more.

JUSTICE KAGAN’s final policy argument is that *Auer* promotes “consistency” and “uniformity” in the interpretation of regulations. *Ante*, at 572–573. If we let courts decide what regulations mean, she warns, they might disagree, and it might take some time for higher courts to resolve those disagreements. But consistency and uniformity are hardly grounds on which *Auer*’s advocates should wish to fight. The judicial process is how we settle disputes about the meaning of written law, and our judicial system is more than capable of producing a single, uniform, and stable interpretation that will last until the regulation is amended or repealed. Meanwhile, under *Auer* courts often disagree about

⁹⁹ *Id.*, at 313; see Siegel, Textualism and Contextualism in Administrative Law, 78 B. U. L. Rev. 1023, 1057 (1998).

¹⁰⁰ Larkin & Slattey, 42 Harv. J. L. & Pub. Pol’y, at 647.

¹⁰¹ *Ibid.*

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whether deference is warranted, see *supra*, at 600–601, and a regulation’s “meaning” can be transformed with the stroke of a pen any time there is a new presidential administration. “Consistency,” “uniformity,” and stability in the law are hardly among *Auer*’s crowning achievements.

V. *Stare Decisis*

In the end, a majority declines to endorse JUSTICE KAGAN’s arguments and insists only that, even if *Auer* is not “right and well-reasoned,” we’re stuck with it because of the respect due precedent. *Ante*, at 588.

But notice: While pretending to bow to *stare decisis*, the majority goes about reshaping our precedent in new and experimental ways. True, the majority admits, this Court has in the past accorded *Auer* deference “‘reflexive[ly],” “without significant analysis of the underlying regulation” or “careful attention to [its] nature and context,” and encouraged lower courts to do the same. *Ante*, at 574. But no more. From now on, the majority says, not only must judges “exhaust all the ‘traditional tools’ of construction” to decide whether the agency’s interpretation is “reasonable,” they must also make “an independent inquiry into whether the character and context of the agency interpretation” justifies deference. *Ante*, at 575–576. The majority candidly admits that it finds it impossible to “reduce” this new inquiry “to any exhaustive test,” so it settles for laying out some “markers.” *Ante*, at 576–577. What are the markers? We are told that courts should often—but not always—withhold deference from an interpretation offered by mid-level agency staff; often—but not always—withhold deference from a nontechnical, “prosaic-seeming” interpretation; often—but not always—withhold deference from an interpretation advanced for the first time in an *amicus* brief; and often—but not always—withhold deference from an interpretation that conflicts with an earlier one. See *ante*, at 576–579. The only certainty in all this is that the majority isn’t really much

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moved by *stare decisis*; everyone recognizes, to one degree or another, that *Auer* cannot stand. And between our remaining choices—continuing to make up new deference rules, or returning to the text of the APA and the approach to judicial review that prevailed for most of our history—the answer should have been easy.

A

There are serious questions about whether *stare decisis* should apply here at all. To be sure, *Auer*'s narrow holding about the meaning of the regulation at issue in that case may be entitled to *stare decisis* effect. The same may be true for the specific holdings in other cases where this Court has applied *Auer* deference. But does *stare decisis* extend beyond those discrete holdings and bind future Members of this Court to apply *Auer*'s broader deference framework?

It seems doubtful that *stare decisis* demands that much. We are not dealing with a precedent that purported to settle the meaning of a single statute or regulation or resolve a particular case. The *Auer* doctrine claims to do much more than that—to prescribe an interpretive methodology governing every future dispute over the meaning of every regulation. In other contexts, we do not regard statements in our opinions about such generally applicable interpretive methods, like the proper weight to afford historical practice in constitutional cases or legislative history in statutory cases, as binding future Justices with the full force of horizontal *stare decisis*.¹⁰² Why, then, should we regard as binding *Auer*'s statements about the weight to afford agencies' interpretations in regulatory cases? To the extent *Auer* purports to dictate "the interpretive inferences that future Justices must draw in construing statutes and regulations

¹⁰² See Criddle & Staszewski, *Against Methodological Stare Decisis*, 102 Geo. L. J. 1573, 1577, and n. 12 (2014); C. Oldfather, *Methodological Stare Decisis and Constitutional Interpretation*, in *Precedent in the United States Supreme Court* 135, 135–136 (C. Peters ed. 2013).

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that the Court has never engaged,” it may well “exceed the limits of *stare decisis*.”¹⁰³

Even if our past expressions of support for *Auer* deference bear *some* precedential force, they certainly are not entitled (as the majority suggests, *ante*, at 587–588) to the special, heightened form of *stare decisis* we reserve for narrow statutory decisions. In contrast to precedents that fix the meaning of *particular* statutes and generate reliance interests in the process, the *Auer* doctrine is an abstract default rule of interpretive methodology that settles nothing of its own force. And this Court has recognized that it is “inconsistent with the Court’s proper role” to insist that Congress exercise its legislative power to overturn such erroneous and judicially invented “default rule[s].”¹⁰⁴ That should be especially so here because *Auer*’s default rule undermines judicial independence, which this Court has a special responsibility to defend.

Nor is it entirely clear that Congress *could* overturn the *Auer* doctrine legislatively. The majority describes *Auer* as a “presumption” about how courts should interpret statutes granting rulemaking power to agencies. *Ante*, at 573. Congress can, of course, *rebut* the presumption on a statute-by-statute basis, or even for all past statutes. But can Congress *eliminate* the *Auer* presumption for future statutes? Perhaps—but legislation like that would raise questions, which the majority does not address, about the ability of one Congress to entrench its preferences by attempting to control the interpretation of legislation enacted by future Con-

¹⁰³ Kozel, Statutory Interpretation, Administrative Deference, and the Law of *Stare Decisis*, 97 Texas L. Rev. 1125, 1159 (2019); see Raso & Eskridge, *Chevron* as a Canon, Not a Precedent: An Empirical Study of What Motivates Justices in Agency Deference Cases, 110 Colum. L. Rev. 1727, 1765–1766 (2010) (concluding that in practice, this Court has not treated administrative-deference regimes such as *Chevron* and *Auer* as binding precedents).

¹⁰⁴ *South Dakota v. Wayfair, Inc.*, 585 U. S. 162, 183 (2018).

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gresses.¹⁰⁵ We should not be in the business of tossing “balls . . . into Congress’s court,” *ante*, at 587, that would explode with constitutional questions if Congress tried to pick them up.

B

Even assuming for argument’s sake that standard *stare decisis* considerations apply, they still do not require us to retain *Auer*. Even the majority implicitly recognizes this much, as it proceeds to vacate a lower court judgment that faithfully applied *Auer* and instruct that court to try again using the majority’s new directions. If *stare decisis* allows us so freely to remodel *Auer*, it’s hard to see on what account it might require us to retain it.

We do not lightly overturn precedents, and we seek always to honor the thoughtful guidance of those who have preceded us. At the same time, everyone agrees that *stare decisis* is not an “inexorable command,”¹⁰⁶ and this Court should not always remain bound to decisions whose “rationale no longer withstands ‘careful analysis.’”¹⁰⁷ Recognizing the need for balance in this area, the Court has, over time, fashioned principles to guide our treatment of precedent. Those principles call on us to consider factors such as “the quality of [the precedent’s] reasoning, the workability of the rule it established, its consistency with other related decisions, developments since the decision was handed down, and reliance on the decision.”¹⁰⁸ As applied to *Auer*, all of these considera-

¹⁰⁵ See, e.g., Alexander & Prakash, Mother May I? Imposing Mandatory Prospective Rules of Statutory Interpretation, 20 Const. Comment. 97 (2003); Elhauge, Preference-Estimating Statutory Default Rules, 102 Colum. L. Rev. 2027, 2109–2110, and nn. 231–233 (2002).

¹⁰⁶ *Pearson v. Callahan*, 555 U. S. 223, 233 (2009).

¹⁰⁷ *Arizona v. Gant*, 556 U. S. 332, 348 (2009) (quoting *Lawrence v. Texas*, 539 U. S. 558, 577 (2003)).

¹⁰⁸ *Janus v. State, County, and Municipal Employees*, 585 U. S. 878, 917 (2018).

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tions weigh strongly in favor of bidding farewell to the doctrine rather than keeping it on life support.

First, we’ve already seen that no persuasive rationale supports *Auer*. From its humble origins as an unexplained bit of dictum in a wartime case about emergency price controls, the *Auer* doctrine evolved into a rigid rule of deference—all without any serious attempt by this Court to rationalize it or reconcile it with the APA, the Constitution, or traditional modes of judicial review. See Part I, *supra*. Even its fiercest defenders acknowledge that “*Auer* deference has not remained static over time” and urge the Court to continue to “shape” and “refin[e]” the doctrine.¹⁰⁹ Today’s decision attempts just such a “refinement” by hedging *Auer* with new qualifications and limitations. See *ante*, at 573–579. This shifting ground “undermin[es] the force of *stare decisis*.”¹¹⁰

Second, today’s ruling all but admits that *Auer* has not proved to be a workable standard. Even before this latest overhaul, uncertainty surrounding *Auer*’s scope and application had caused many to question whether there was any “practical benefit” in continuing to apply *Auer* “rather than a less deferential but more flexible and open-ended standard like *Skidmore*.”¹¹¹ See *supra*, at 600–601. Nor does the majority’s kinder, gentler version of *Auer* promise to solve the problem. On the contrary, its newly mandated inquiry into the “character and context of the agency interpretation,” which it admits cannot be reduced “to any exhaustive test,” *ante*, at 576, seems destined only to compound the confusion. See *supra*, at 625–626. Many words come to mind to describe the tasks we assign lower court judges today, but “workable” is not among them.

¹⁰⁹ Brief for Administrative Law Scholars as *Amici Curiae* 13.

¹¹⁰ *Knick v. Township of Scott*, 588 U. S. 180, 204 (2019); see *Janus*, 585 U. S., at 928. See also *Lost History* 54–92; Knudsen & Wildermuth, 22 *Geo. Mason L. Rev.*, at 658–664.

¹¹¹ Hickman & Thomson, 103 *Minn. L. Rev. Headnotes*, at 110.

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Third, the *Auer* doctrine is, as we have also already seen, out of step with how courts normally interpret written laws. When we interpret a regulation, we typically (at least when there is no agency say-so) proceed in the same way we would when interpreting any other written law: We “begin our interpretation of the regulation with its text” and, if the text is unclear, we “turn to other canons of interpretation” and tie-breaking rules to resolve the ambiguity.¹¹² And when we interpret an ambiguous *statute*, we never ask what current members of Congress think it means; in fact, we’ve held unanimously that legislators’ post-enactment views about a statute’s meaning are not even a “‘legitimate tool of statutory interpretation.’”¹¹³ Affording “controlling weight” to regulators’ post-promulgation views about the meaning of an ambiguous regulation is hard to square with these usual judicial practices.¹¹⁴

Fourth, the explosive growth of the administrative state over the last half-century has exacerbated *Auer*’s potential for mischief. When the Court first uttered its dictum in *Seminole Rock*, the administrative state was new and the APA was only a gleam in Congress’s eye. Even 20 years

¹¹² *Green v. Brennan*, 578 U. S. 547, 553–554 (2016); see, e. g., *National Assn. of Home Builders v. Defenders of Wildlife*, 551 U. S. 644, 668–669 (2007) (construing regulation in light of text, history, and canon against surplusage).

¹¹³ *Woods*, 571 U. S., at 48; see also *Bruesewitz v. Wyeth LLC*, 562 U. S. 223, 242 (2011); *Jones v. United States*, 526 U. S. 227, 238 (1999); *United States v. Mine Workers*, 330 U. S. 258, 281–282 (1947).

¹¹⁴ To be sure, under *Chevron U. S. A. Inc. v. Natural Resources Defense Council, Inc.*, 467 U. S. 837 (1984), we sometimes defer to an agency’s construction of a *statute*. But there are serious questions, too, about whether *that* doctrine comports with the APA and the Constitution. See, e. g., *Pereira v. Sessions*, 585 U. S. 198, 219–221 (2018) (Kennedy, J., concurring); *Michigan v. EPA*, 576 U. S. 743, 760–764 (2015) (THOMAS, J., concurring); *Perez*, 575 U. S., at 109–110 (Scalia, J., concurring in judgment). Regardless, it would be a mistake to suppose that *Auer* is in any way a “logical corollary to *Chevron*.” *Decker*, 568 U. S., at 620 (Scalia, J., concurring in part and dissenting in part).

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later, when the Court began reviving the *Seminole Rock* dictum and turning it into a new deference doctrine, it was not yet apparent how pervasive the administrative state would become in the lives of ordinary Americans. Now, in the 21st century, “[t]he administrative state wields vast power and touches almost every aspect of daily life.”¹¹⁵ Among other things, it produces “‘reams of regulations’”¹¹⁶—so many that they dwarf the statutes enacted by Congress. As of 2018, the Code of Federal Regulations filled 242 volumes and was about 185,000 pages long, almost quadruple the length of the most recent edition of the U. S. Code.¹¹⁷ And agencies add thousands more pages of regulations every year. Whether you think this administrative fecundity is a good or a bad thing, it surely means that the cost of continuing to deny citizens an impartial judicial hearing on the meaning of disputed regulations has increased dramatically since this Court started down this road.

Fifth, *Auer* has generated no serious reliance interests. The only parties that might have relied on *Auer*’s promise of deference are agencies that use *post hoc* interpretations to bypass the APA’s notice-and-comment procedures. But this Court has never suggested that the convenience of government officials should count in the balance of *stare decisis*, especially when weighed against the interests of citizens in a fair hearing before an independent judge and a stable and knowable set of laws. In short, “[t]he fact that [agencies] may view [*Auer* deference] as an entitlement does not establish the sort of reliance interest that could outweigh the

¹¹⁵ *Arlington*, 569 U. S., at 313 (ROBERTS, C. J., dissenting) (internal quotation marks omitted).

¹¹⁶ *Federal Maritime Comm’n v. South Carolina Ports Authority*, 535 U. S. 743, 755 (2002).

¹¹⁷ See Office of the Federal Register, Code of Federal Regulations: Total Pages 1938–1949, and Total Volumes and Pages 1950–2018, <http://www.federalregister.gov/uploads/2019/04/cfrTotalPages2018.pdf>; *United States v. Secretary, Fla. Dept. of Corrections*, 778 F. 3d 1223, 1225 (CA11 2015).

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countervailing interest’” of all citizens “‘in having their constitutional rights fully protected.’”¹¹⁸

Coming closer to the mark, the majority worries that “abandoning *Auer* deference would cast doubt on many settled constructions” of regulations on which regulated parties might have relied. *Ante*, at 587. But, again, decisions construing particular regulations might retain *stare decisis* effect even if the Court announced that it would no longer adhere to *Auer*’s interpretive methodology. After all, decisions construing particular statutes continue to command respect even when the interpretive methods that led to those constructions fall out of favor. Besides, if the majority is correct that abandoning *Auer* would require revisiting regulatory constructions that were upheld based on *Auer* deference, the majority’s revision of *Auer* will yield exactly the same result. There are innumerable lower court decisions that have followed this Court’s lead and afforded *Auer* deference mechanically, without conducting the inquiry the Court now holds is required. Today’s ruling casts no less doubt on the continuing validity of those decisions than we would if we simply moved on from *Auer*.

*

Overruling *Auer* would have taken us directly back to *Skidmore*, liberating courts to decide cases based on their independent judgment and “follow [the] agency’s [view] only to the extent it is persuasive.”¹¹⁹ By contrast, the majority’s attempt to remodel *Auer*’s rule into a multi-step, multi-factor inquiry guarantees more uncertainty and much litigation. Proceeding in this convoluted way burdens our colleagues on the lower courts, who will have to spend time debating deference that they could have spent interpreting

¹¹⁸ *Janus*, 585 U. S., at 927 (quoting *Gant*, 556 U. S., at 349).

¹¹⁹ *Gonzales v. Oregon*, 546 U. S. 243, 269 (2006); see *Christopher*, 567 U. S., at 159 (applying *Skidmore* after concluding that agency’s interpretation did not merit *Auer* deference).

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disputed regulations. It also continues to deny the people who come before us the neutral forum for their disputes that they rightly expect and deserve.

But this cloud may have a silver lining: The majority leaves *Auer* so riddled with holes that, when all is said and done, courts may find that it does not constrain their independent judgment any more than *Skidmore*. As reengineered, *Auer* requires courts to “exhaust all the ‘traditional tools’ of construction” before they even consider deferring to an agency. *Ante*, at 575. And those tools include all sorts of tie-breaking rules for resolving ambiguity even in the closest cases. Courts manage to make do with these tools in many other areas of the law, so one might hope they will hardly ever find them inadequate here. And if they do, they will now have to conduct a further inquiry that includes so few firm guides and so many cryptic “markers” that they will rarely, if ever, have to defer to an agency regulatory interpretation that differs from what they believe is the best and fairest reading.

But whatever happens, this case hardly promises to be this Court’s last word on *Auer*. If today’s opinion ends up reducing *Auer* to the role of a tin god—officious, but ultimately powerless—then a future Court should candidly admit as much and stop requiring litigants and lower courts to pay token homage to it. Alternatively, if *Auer* proves more resilient, this Court should reassert its responsibility to say what the law is and afford the people the neutral forum for their disputes that they expect and deserve.

JUSTICE KAVANAUGH, with whom JUSTICE ALITO joins, concurring in the judgment.

I agree with JUSTICE GORSUCH’s conclusion that the *Auer* deference doctrine should be formally retired. I write separately to emphasize two points.

First, I agree with THE CHIEF JUSTICE that “the distance between the majority and JUSTICE GORSUCH is not as great

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as it may initially appear.” *Ante*, at 591 (opinion concurring in part). The majority’s approach in Part II–B of its opinion closely resembles the argument advanced by the Solicitor General to “clarif[y] and narro[w]” *Auer*. Brief for Respondent 15. Importantly, the majority borrows from footnote 9 of this Court’s opinion in *Chevron* to say that a reviewing court must “exhaust all the ‘traditional tools’ of construction” before concluding that an agency rule is ambiguous and deferring to an agency’s reasonable interpretation. *Ante*, at 575 (quoting *Chevron U. S. A. Inc. v. Natural Resources Defense Council, Inc.*, 467 U. S. 837, 843, n. 9 (1984)). If a reviewing court employs all of the traditional tools of construction, the court will almost always reach a conclusion about the best interpretation of the regulation at issue. After doing so, the court then will have no need to adopt or defer to an agency’s contrary interpretation. In other words, the footnote 9 principle, taken seriously, means that courts will have no reason or basis to put a thumb on the scale in favor of an agency when courts interpret agency regulations.

Formally rejecting *Auer* would have been a more direct approach, but rigorously applying footnote 9 should lead in most cases to the same general destination. Umpires in games at Wrigley Field do not defer to the Cubs manager’s in-game interpretation of Wrigley’s ground rules. So too here.

To be sure, some cases involve regulations that employ broad and open-ended terms like “reasonable,” “appropriate,” “feasible,” or “practicable.” Those kinds of terms afford agencies broad policy discretion, and courts allow an agency to reasonably exercise its discretion to choose among the options allowed by the text of the rule. But that is more *State Farm* than *Auer*. See *Motor Vehicle Mfrs. Assn. of United States, Inc. v. State Farm Mut. Automobile Ins. Co.*, 463 U. S. 29 (1983).

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In short, after today's decision, a judge should engage in appropriately rigorous scrutiny of an agency's interpretation of a regulation, and can simultaneously be appropriately deferential to an agency's reasonable policy choices within the discretion allowed by a regulation.

Second, I also agree with THE CHIEF JUSTICE that “[i]ssues surrounding judicial deference to agency interpretations of their own regulations are distinct from those raised in connection with judicial deference to agency interpretations of statutes enacted by Congress.” *Ante*, at 591. Like THE CHIEF JUSTICE, “I do not regard the Court’s decision” not to formally overrule *Auer* “to touch upon the latter question.” *Ibid*.

Syllabus

UNITED STATES *v.* HAYMONDCERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE TENTH CIRCUIT

No. 17–1672. Argued February 26, 2019—Decided June 26, 2019

Respondent Andre Haymond was convicted of possessing child pornography, a crime that carries a prison term of zero to 10 years. After serving a prison sentence of 38 months, and while on supervised release, Mr. Haymond was again found with what appeared to be child pornography. The government sought to revoke his supervised release and secure a new and additional prison sentence. A district judge, acting without a jury, found by a preponderance of the evidence that Mr. Haymond knowingly downloaded and possessed child pornography. Under 18 U.S.C. § 3583(e)(3), the judge could have sentenced him to a prison term of between zero and two additional years. But because possession of child pornography is an enumerated offense under § 3583(k), the judge instead imposed that provision's 5-year mandatory minimum. On appeal, the Tenth Circuit observed that whereas a jury had convicted Mr. Haymond beyond a reasonable doubt of a crime carrying a prison term of zero to 10 years, this new prison term included a new and higher mandatory minimum resting on facts found only by a judge by a preponderance of the evidence. The Tenth Circuit therefore held that § 3583(k) violated the right to trial by jury guaranteed by the Fifth and Sixth Amendments.

Held: The judgment is vacated, and the case is remanded.

869 F. 3d 1153, vacated and remanded.

JUSTICE GORSUCH, joined by JUSTICE GINSBURG, JUSTICE SOTOMAYOR, and JUSTICE KAGAN, concluded that the application of § 3583(k) in this case violated Mr. Haymond's right to trial by jury. Pp. 640–657.

(a) As at the time of the Fifth and Sixth Amendments' adoption, a judge's sentencing authority derives from, and is limited by, the jury's factual findings of criminal conduct. A jury must find beyond a reasonable doubt every fact “‘which the law makes essential to [a] punishment’” that a judge might later seek to impose. *Blakely v. Washington*, 542 U.S. 296, 304. Historically, that rule's application proved straightforward, but recent legislative innovations have raised difficult questions. In *Apprendi v. New Jersey*, 530 U.S. 466, for example, this Court held unconstitutional a sentencing scheme that allowed a judge to increase a defendant's sentence beyond the statutory maximum based on the judge's finding of new facts by a preponderance of the evidence.

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And in *Alleyne v. United States*, 570 U. S. 99, the Court held that *Apprendi*'s principle "applies with equal force to facts increasing the mandatory minimum." 570 U. S., at 111–112. The lesson for this case is clear: Based solely on the facts reflected in the jury's verdict, Mr. Haymond faced a lawful prison term of between zero and 10 years. But just like the facts the judge found at the defendant's sentencing hearing in *Alleyne*, the facts the judge found here increased "the legally prescribed range of allowable sentences" in violation of the Fifth and Sixth Amendments. *Id.*, at 115. Pp. 640–646.

(b) The government's various replies are unpersuasive. First, it stresses that *Alleyne* arose in a different procedural posture, but this Court has repeatedly rejected efforts to dodge the demands of the Fifth and Sixth Amendments by the simple expedient of relabeling a criminal prosecution. And this Court has already recognized that punishments for revocation of supervised release arise from and are "treat[ed] . . . as part of the penalty for the initial offense." *Johnson v. United States*, 529 U. S. 694, 700. Because a defendant's final sentence includes any revocation sentence he may receive, § 3583(k)'s 5-year mandatory minimum mirrors the unconstitutional sentencing enhancement in *Alleyne*. Second, the government suggests that Mr. Haymond's sentence for violating the terms of his supervised release was actually fully authorized by the jury's verdict, because his supervised release was from the outset always subject to the possibility of judicial revocation and § 3583(k)'s mandatory prison sentence. But what is true in *Apprendi* and *Alleyne* can be no less true here: A mandatory minimum 5-year sentence that comes into play *only* as a result of additional judicial factual findings by a preponderance of the evidence cannot stand. Finally, the government contends that § 3583(k)'s supervised release revocation procedures are practically identical to historic parole and probation revocation procedures, which have usually been understood to comport with the Fifth and Sixth Amendments. That argument overlooks a critical difference between § 3583(k) and traditional parole and probation practices. Where parole and probation violations traditionally exposed a defendant only to the *remaining* prison term authorized for his crime of conviction, § 3583(k) exposes a defendant to an *additional* mandatory minimum prison term *beyond* that authorized by the jury's verdict—all based on facts found by a judge by a mere preponderance of the evidence. Pp. 646–652.

(c) The Tenth Circuit may address on remand the question whether its remedy—declaring the last two sentences of § 3583(k) "unconstitutional and unenforceable"—sweeps too broadly, including any question concerning whether the government's argument to that effect was adequately preserved. Pp. 656–657.

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JUSTICE BREYER agreed that the particular provision at issue, 18 U. S. C. § 3583(k), is unconstitutional. Three features of § 3583(k), considered together, make it less like ordinary supervised-release revocation and more like punishment for a new offense, to which the jury right would typically attach. First, § 3583(k) applies only when a defendant commits a discrete set of criminal offenses specified in the statute. Second, § 3583(k) takes away the judge's discretion to decide whether violation of the conditions of supervised release should result in imprisonment and for how long. Third, § 3583(k) limits the judge's discretion in a particular manner: by imposing a mandatory minimum term of imprisonment of "not less than 5 years" upon a judge's finding that a defendant has committed a listed offense. But because the role of the judge in a typical supervised-release proceeding is consistent with traditional parole and because Congress clearly did not intend the supervised-release system to differ from parole in this respect, JUSTICE BREYER would not transplant the *Apprendi* line of cases to the supervised-release context. Pp. 657–659.

GORSUCH, J., announced the judgment of the Court and delivered an opinion, in which GINSBURG, SOTOMAYOR, and KAGAN, JJ., joined. BREYER, J., filed an opinion concurring in the judgment, *post*, p. 657. ALITO, J., filed a dissenting opinion, in which ROBERTS, C. J., and THOMAS and KAVANAUGH, JJ., joined, *post*, p. 659.

Eric J. Feigin argued the cause for the United States. With him on the briefs were *Solicitor General Francisco*, *Assistant Attorney General Benczkowski*, *Christopher G. Michel*, and *William A. Glaser*.

William D. Lunn argued the cause for respondent. With him on the brief were *Jeffrey T. Green*, *Matthew J. Letten*, and *Sarah O'Rourke Schrup*.*

*A brief of *amici curiae* urging reversal was filed for the State of Utah et al. by *Sean D. Reyes*, Attorney General of Utah, *Tyler R. Green*, Solicitor General, *Thomas B. Bruncker*, Deputy Solicitor General, and *John J. Nielsen*, Assistant Solicitor General, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Leslie Rutledge* of Arkansas, *Pamela Jo Bondi* of Florida, *Christopher M. Carr* of Georgia, *Russell A. Suzuki* of Hawaii, *Curtis T. Hill, Jr.*, of Indiana, *Derek Schmidt* of Kansas, *Jeff Landry* of Louisiana, *Bill Schuette* of Michigan, *Timothy C. Fox* of Montana, *Doug Peterson* of Nebraska, *Gurbir S. Grewal* of New Jersey, *Michael DeWine* of Ohio, *Mike Hunter* of Oklahoma, *Alan Wilson*

Opinion of GORSUCH, J.

JUSTICE GORSUCH announced the judgment of the Court and delivered an opinion, in which JUSTICE GINSBURG, JUSTICE SOTOMAYOR, and JUSTICE KAGAN joined.

Only a jury, acting on proof beyond a reasonable doubt, may take a person’s liberty. That promise stands as one of the Constitution’s most vital protections against arbitrary government. Yet in this case a congressional statute compelled a federal judge to send a man to prison for a minimum of five years without empaneling a jury of his peers or requiring the government to prove his guilt beyond a reasonable doubt. As applied here, we do not hesitate to hold that the statute violates the Fifth and Sixth Amendments.

I

After a jury found Andre Haymond guilty of possessing child pornography in violation of federal law, the question turned to sentencing. The law authorized the district judge to impose a prison term of between zero and 10 years, 18 U. S. C. § 2252(b)(2), and a period of supervised release of between 5 years and life, § 3583(k). Because Mr. Haymond had no criminal history and was working to help support his mother who had suffered a stroke, the judge concluded that Mr. Haymond was “not going to get much out of being in prison” and sentenced him to a prison term of 38 months, followed by 10 years of supervised release.

After completing his prison sentence, however, Mr. Haymond encountered trouble on supervised release. He sat for multiple polygraph tests in which he denied possessing or viewing child pornography, and each time the test indicated

of South Carolina, *Ken Paxton* of Texas, *Patrick Morrissey* of West Virginia, and *Peter K. Michael* of Wyoming.

Briefs of *amici curiae* urging affirmance were filed for the Due Process Institute by *David T. Goldberg* and *Shana-Tara O’Toole*; for FAMM et al. by *Rakesh N. Kilaru*, *Peter Goldberger*, *Mary Price*, *Barbara E. Bergman*, and *Chanakya A. Sethi*; and for Social Science and Law Scholars by *Daniel E. Gustafson*.

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no deception. But when the government conducted an unannounced search of his computers and cellphone, it turned up 59 images that appeared to be child pornography. Based on that discovery, the government sought to revoke Mr. Haymond's supervised release and secure a new and additional prison sentence.

A hearing followed before a district judge acting without a jury, and under a preponderance of the evidence rather than a reasonable doubt standard. In light of expert testimony regarding the manner in which cellphones can "cache" images without the user's knowledge, the judge found insufficient evidence to show that Mr. Haymond knowingly possessed 46 of the images. At the same time, the judge found it more likely than not that Mr. Haymond knowingly downloaded and possessed the remaining 13 images.

With that, the question turned once more to sentencing. Under 18 U. S. C. § 3583(e)(3), enacted as part of the Sentencing Reform Act of 1984, a district judge who finds that a defendant has violated the conditions of his supervised release normally may (but is not required to) impose a new prison term up to the maximum period of supervised release authorized by statute for the defendant's original crime of conviction, subject to certain limits.¹ Under that provision, the judge in this case would have been free to sentence

¹Section 3583(e)(3) states in pertinent part: "The court may, after considering the factors set forth in section 3553(a)(1), . . . (3) revoke a term of supervised release, and require the defendant to serve in prison all or part of the term of supervised release authorized by statute for the offense that resulted in such term of supervised release without credit for time previously served on postrelease supervision, if the court . . . finds by a preponderance of the evidence that the defendant violated a condition of supervised release, except that a defendant whose term is revoked under this paragraph may not be required to serve on any such revocation more than 5 years in prison if the offense that resulted in the term of supervised release is a class A felony, more than 3 years in prison if such offense is a class B felony, more than 2 years in prison if such offense is a class C or D felony, or more than one year in any other case"